

24STCV28465 24STCV28465

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-06-29

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C311%2C06%2F29%2F2026

Source SHA-256: 7ac2ff0626baee49274322ecc6404613aediae9e4599b1ad5b7e57e0e41ff5374

Case Number: 24STCV28465 Hearing Date: June 29, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV28465

SAMMY

CHING vs JOSEPH ANTHONY VERGILIO, et al.

June

29, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF SAMMY CHING'S MOTION TO COMPEL DEFENDANT JOSEPH ANTHONY VERGILIO OF THE JUSTICE LAW FIRM'S RESPONSES TO FORM INTERROGATORIES, SET ONE, FIRST SET OF REQUESTS FOR ADMISSION AND FIRST SET OF REQUESTS FOR PRODUCTION; TO DEEM ADMITTED REQUESTS FOR ADMISSION AS TO DEFENDANTS and FOR SANCTIONS IN THE

AMOUNT OF \$2,625.

RULING:

The Court grants the unopposed
Motion as prayed.

On or before July 31, 2026,
Defendant JOSEPH ANTHONY VERGILIO shall serve initial responses, without
objections, and in full compliance with the California Discovery Act (Code Civ.
Proc. § 2016.010 et seq.), as to Form Interrogatories, Requests for Production,
and Request for Admissions, served by Plaintiff SAMMY CHING.

The truth of all
specified matters in Plaintiffs' Request for Admissions, Set No.1, served on
Defendant Joseph Anthony Vergilio on June 25, 2025, are deemed admitted.

On or before July 31,
2026, Defendants JOSEPH ANTHONY VERGILIO and THE JUSTICE LAW FIRM, LLC, jointly
and severally, shall pay discovery sanctions in the sum of \$2,625.00 to that Plaintiff,
the Court finding the absence of substantial justification. (E.g., Code Civ.
Proc., § 2023.030.)

I.

BACKGROUND

On October 30, 2024, SAMMY
CHING (Plaintiff) filed a Complaint for Attorney Malpractice against JOSEPH
ANTHONY VERGILIO; THE JUSTICE FIRM, LLC; and SCOTT HOWARD BENTLEY (Defendants).

Plaintiff alleges that Defendants
failed to exercise reasonable care, skill and diligence, in legal
representation of Plaintiff in defense of an underlying case.

On May 13, 2026, Plaintiff
filed the Motion to Compel JOSEPH ANTHONY VERGILIO's (Defendant's) initial responses
to Form Interrogatories, and Document and Admission Requests, on grounds that Defendant
failed to respond. Plaintiff additionally requests monetary sanctions against Defendant,
and Defendant THE JUSTICE FIRM.

Defendants filed no
Opposition.

II.

LEGAL STANDARD

A

motion to compel initial discovery
responses need only show that discovery was properly served on the opposing
party, the time to respond expired, and no response was served. (Leach v. Superior Court (1980) 111
Cal.App.3d 902, 905-906; Code Civ. Proc., §§ 2030.290 [compelling initial
interrogatory responses], 2031.300 [compelling initial document requests].) A
motion to compel initial discovery responses need not show good cause, meeting
and conferring, or timely filing, and need not be accompanied by a separate
statement. (Sinaiko Healthcare
Consulting, Inc. v. Pac. Healthcare Consultants (2007) 148 Cal.App.4th 390,
404.)

A

motion to deem admitted requests for admissions lies based upon a showing of
failure to respond timely. (Code Civ. Proc., § 2033.280, subd. (b); Demyer v. Costa Mesa Mobile Home Estates
(1995) 36 Cal.App.4th 393, 395, disapproved
on other grounds by Wilcox v.
Birtwhistle (1999) 21 Cal.4th 973, 983.) Requests for admissions must be
deemed admitted where no responses in substantial compliance were served before
the hearing. (Code Civ. Proc., § 2033.280, subd. (c).) As to motions to deem
matters admitted, no meet and confer is required. (Demyer v. Costa Mesa Mobile Home Estates (1995) 36 Cal.App.4th 393,
395, overruled on other grounds by Wilcox
v. Birtwhistle (1999) 21 Cal.4th 973, 983.)

Monetary

discovery sanctions are mandatory as to parties losing discovery motions,
unless courts find substantial justification or other injustice. (Deck v. Devs. Inv. Co. (2023) 89 Cal.App.5th 808, 830.) “[T]he
phrase “substantial justification” has been understood to mean that a
justification is clearly reasonable because it is well grounded in both law and
fact.” (Kwan Software Engineering, Inc. v. Hennings (2020) 58
Cal.App.5th 57, 75.) “If the party seeking a monetary sanction meets its burden
of proof, the burden shifts to the opposing party attempting to avoid a
monetary sanction to show that it acted with ‘substantial justification.’” (Doe v. U.S. Swimming, Inc. (2011) 200
Cal.App.4th 1424, 1435.)

III.

ANALYSIS

Plaintiff asserts that Defendant failed to serve any response to the subject discovery requests.

The failure to file a proper and timely opposition in trial court creates a waiver of the issues on any appeal. (Bell v. Am. Title Ins. Co. (1991) 226 Cal.App.3d 1589, 1602; Cabrini Villas Homeowners Assn. v. Haghverdian (2003) 111 Cal.App.4th 683, 693.)

There is no Opposition raising issues for the Court to address.

IV.

CONCLUSION

The Court grants the unopposed Motion.